

Court No. - 39

Case :- WRIT - C No. - 35300 of 2018

Petitioner :- Ramesh Nath Pandey

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Srivastava

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble B. Amit Sthalekar,J.

Hon'ble Surya Prakash Kesarwani,J.

As requested by Sri Manoj Kumar Tiwari holding brief of Sri Manoj Srivastava, learned counsel for the petitioner, put up tomorrow, i.e. on **26.10.2018**, as fresh.

Dr. S.K. Yadav, learned counsel for respondents no. 2 & 3, is present.

Order Date :- 25.10.2018

Vandana

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Counsel for Petitioner :- Manoj Srivastava

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Hon'ble B. Amit Sthalekar,J.

Hon'ble Surya Prakash Kesarwani,J.

Heard Sri Manoj Srivastava, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Dr. S.K.Yadav, learned counsel for the respondents no. 2 & 3.

The petitioner in the writ petition is seeking quashing of the recovery notice dated 27.09.2018 whereby disconnection notice on account of arrears of bill of Rs.63870/- has been issued to him.

According to the petitioner, the bill is erroneous and there is absolutely no arrears in his electricity connection.

In our opinion, it is always open to the petitioner to file his objection before the Executive Engineer in view of the provisions of Para 6.5 of the Electricity Supply Code, 2005.

The writ petition is, therefore, disposed of with a direction that if the petitioner files his objections against the impugned notice dated 27.9.2018 before the Executive Engineer, KESCO, Kanpur Nagar, respondent no. 3 within a week from today, the respondent no. 3 shall consider and decide the same in accordance with law within one month thereafter after giving an opportunity of hearing to the petitioner.

It is further directed that no coercive steps shall be taken against the petitioner in pursuance of the demand notice dated 27.9.2018 till such decision is taken by the Executive Engineer, respondent no. 3.

Order Date :- 26.10.2018

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